ch. 845, §§ 1–3, 31 Stat. 1093; Apr. 29, 1902, ch. 641, §§ 1, 2, 4, 32 Stat. 176, 177; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428; Aug. 24, 1912, ch. 355, § 1 (part), 37 Stat. 476, related to the exclusion of Chinese and persons of Chinese descent from the United States or its Territories, and to various matters appertaining thereto, including the requirement of certificates of permission and identity by those who might be entitled to entry, exemptions, duties of masters of vessels and Federal officers, arrest, hearing and removal of Chinese unlawfully within the United States or its Territories, habeas corpus, and forfeitures and penalties for violation of the exclusion laws.

Acts Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Res. Apr. 28, 1904, No. 34, 33 Stat. 591; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933, and 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, formerly cited in credits to many of these sections, were not specifically repealed by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600, however, each related to departmental changes of administrative functions and depended for their efficacy upon the acts repealed by said act Dec. 17, 1943.

Act. Aug. 29, 1916, ch. 416, § 12, 39 Stat. 548, formerly cited in credit to section 297, was not specifically repealed by act Dec. 17, 1943, cited above; however it merely affected the original of the words "Philippine Legislature."

CROSS REFERENCES

Chinese immigration quotas, see note under section 211 of this title.

§ 298. Bertillon system of identification.

CODIFICATION

Section, acts Mar. 17, 1894, Art. III, 28 Stat. 1211; Apr. 28, 1904, ch. 1762, § 1, 33 Stat. 478, provided for the Bertillon system of identification at the various ports of entry, to prevent unlawful entry of Chinese into the United States. It is obsolete in view of the repeal of sections 262–297 of this title by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600. For some years prior to such act, no moneys had been appropriated to prevent unlawful entry of Chinese, referred to in this section.

§ 299. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Section, act June 23, 1913, ch. 3, § 1, 38 Stat. 65, provided for delivery by the marshal, of all Chinese persons ordered deported under judicial writs, into the custody of any officer designated for that purpose, for conveyance to the frontier or seaboard for deportation.

1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, formerly cited in credit to this section, was not specifically repealed by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600; however, it merely affected original of words "Attorney General."

Chapter 8.—THE COOLY TRADE

Sec.
331. Cooly trade prohibited.
332. Same; forfeiture of vessels.
333. Building vessels to engage in cooly trade; penalty.
334. Punishment for engaging in cooly trade.
335. Voluntary emigration of "coolies" excepted.
336. Same; inquiry and certificate by consular officer.
337. Examination of vessels.
338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.
339. Contracting to supply cooly labor.

§ 331. Cooly trade prohibited.

No citizen of the United States, or foreigner coming into or residing within the same, shall, for himself or for any other person, either as master, factor, owner, or otherwise, build, equip, load, or otherwise prepare, any vessel, registered, enrolled, or licensed, in the United States, for the purpose of procuring from any port or place the subjects of China, Japan, or of any other oriental country, known as "coolies", to be transported to any foreign port, or place, to be disposed of, or sold, or transferred, for any time, as servants or apprentices, or to be held to service or labor. (R. S. § 2158.)

DERIVATION

Acts Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340; Feb. 9, 1869, ch. 24, 15 Stat. 269.

§ 332. Same; forfeiture of vessels.

If any vessel, belonging in whole or in part to a citizen of the United States, and registered, enrolled, or otherwise licensed therein, be employed in the "cooly trade", so called, contrary to the provisions of section 331 of this title, such vessel, her tackle, apparel, furniture, and other appurtenances, shall be forfeited to the United States, and shall be liable to be seized, prosecuted, and condemned in any of the district courts of the United States for the district where the vessel may be found, seized, or carried. (R. S. § 2159; Mar. 3, 1911, ch. 231, § 291, 36 Stat. 1167.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340.

§ 333. Building vessels to engage in cooly trade; penalty.

Every person who so builds, fits out, equips, loads, or otherwise prepares, or who sends to sea, or navigates, as owner, master, factor, agent, or otherwise, any vessel, belonging in whole or in part to a citizen of the United States, or registered, enrolled, or licensed within the same, knowing or intending that such vessel is to be or may be employed in that trade, contrary to the provisions of section 331 of this title, shall be liable to a fine not exceeding $2,000, and be imprisoned not exceeding one year. (R. S. § 2160.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 2, 12 Stat. 340.

§ 334. Punishment for engaging in cooly trade.

Every citizen of the United States who, contrary to the provisions of section 331 of this title, takes on board of any vessel, or receives or transports any such subjects as are described in that section, for the purpose of disposing of them in any way as therein prohibited, shall be liable to a fine not exceeding $2,000 and be imprisoned not exceeding one year. (R. S. § 2161.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 3, 12 Stat. 340.

§ 335. Voluntary emigration of "coolies" excepted.

Nothing contained in sections 135, 331–334, and 337 of this title shall be deemed to apply to any voluntary emigration of the subjects specified in section 331 of this title, or to any vessel carrying such person as passenger on board the same, but a certificate shall be prepared and signed by the consul or consular agent of the United States residing at the port from which such vessel may take her departure, containing the name of such person, and setting forth the fact of his voluntary emigration from such port, which certificate shall be given to the master of such vessel; and the same shall not be given until such consul or consular agent is first personally satisfied by evidence of the truth of the facts therein contained. (R. S. § 2162.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 4, 12 Stat. 341.

§ 336. Same; inquiry and certificate by consular officer.

In determining whether the immigration of any subject of China, Japan, or any oriental country, to the United States, is free and voluntary, as provided by section 335 of this title, it shall be the duty of the consul general or consul of the United States residing at the port from which it is proposed to convey such subjects, in any vessels enrolled or licensed in the United States, or any port within the same, before delivering to the masters of any such vessels the permit or certificate provided for in such section, to ascertain whether such immigrant has entered into a contract or agreement for a term of service within the United States, for lewd and immoral purposes; and if there be such contract or agreement, the said consul general or consul shall not deliver the required permit or certificate. (Mar. 3, 1875, ch. 141, § 1, 18 Stat. 477.)

§ 337. Examination of vessels.

The President is empowered, in such way and at such time as he may judge proper, to direct the vessels of the United States, and the masters and commanders thereof, to examine all vessels navigated or owned in whole or in part by citizens of the United States, and registered, enrolled, or licensed under the laws thereof, whenever in the judgment of such master or commanding officer, reasonable cause exists to believe that such vessel has on board any subjects of China, Japan, or other oriental country, known as "coolies"; and, upon sufficient proof that such vessel is employed in violation of the preceding provisions, to cause her to be carried, with her officers and crew, into any port or district within the United States, and delivered to the marshal of such district, to be held and disposed of according to law. (R. S. § 2163.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 6, 12 Stat. 341.

§ 338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.

If any citizen of the United States, or other person amenable to the laws of the United States, shall take, or cause to be taken or transported, to or from the United States any subject of China, Japan, or any oriental country, without their free and voluntary consent, for the purpose of holding them to a term of service, such citizen or other person shall be liable to be indicted therefor, and, on conviction of such offense, shall be punished by a fine not exceeding $2,000 and be imprisoned not exceeding one year; and all contracts and agreements for a term of service of such persons in the United States, whether made in advance or in pursuance of such illegal importation, and whether such importation shall have been in American or other vessels, are hereby declared void. (Mar. 3, 1875, ch. 141, § 2, 18 Stat. 477.)

§ 339. Contracting to supply cooly labor.

If any person shall knowingly and willfully contract, or attempt to contract, in advance or in pursuance of such illegal importation, to supply to another the labor of cooly or other person brought into the United States in violation of section 331 of this title, or of any other section of the laws prohibiting the cooly trade, such person shall be deemed guilty of a felony, and, upon conviction thereof, in any United States court, shall be fined in a sum not exceeding $500 and imprisoned for a term not exceeding one year. (Mar. 3, 1875, ch. 141, § 4, 18 Stat. 477.)

Chapter 9.—MISCELLANEOUS PROVISIONS

§§ 351–416. Repealed or transferred.

These sections, relating to naturalization, were in large degree affected by the Nationality Act of 1940, section 501 et seq. of this title. That act was passed on Oct. 14, 1940, to consolidate and restate the laws of the United States regarding citizenship, naturalization, and expatriation, and, in addition to certain specific repeals thereby, all acts or parts of acts in conflict with its provisions were repealed by section 904 of this title. See notes below for history of individual sections.

SECTIONS 351–354, relating to Bureau of Naturalization, were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, 54 Stat. 1172. Sections 351–353 were from act June 29, 1906, ch. 3592, § 1, 34 Stat. 596, and section 354 was from act May 9, 1918, ch. 69, § 1, 40 Stat. 544. Present provisions are contained in section 727 of this title. See also section 100 et seq. of this title for general provisions relating to Immigration and Naturalization Service.

SECTION 355, relating to reports of expenditures of Bureau of Naturalization, was repealed by act May 29, 1928, ch. 901, § 1, 45 Stat. 994. It was from act Mar. 4, 1909, ch. 299, § 1, 35 Stat. 982.

SECTIONS 356–358a were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 356, relating to regulations for execution of naturalization laws and use of copies of papers in evidence, was from acts June 29, 1906, ch. 3592, § 28, 34 Stat. 606, and Mar. 2, 1929, ch. 536, § 8, 45 Stat. 1515; present provisions are contained in section 727 of this title. Section 356a, relating to quarters for photographic studio in New York City, was from act May 25, 1932, ch. 203, § 9, 47 Stat. 166; present provisions are contained in section 727 (h) of this title. Sections 357 (from act June 29, 1906, ch. 3592, § 3, 34 Stat. 596, as amended Mar. 3, 1911, ch. 231, § 289, 36 Stat. 1167; June 25, 1936, ch. 804, 49 Stat. 1921), 358 (from act Mar. 2, 1917, ch. 145, § 41, 39 Stat. 965), and 358a (from act Feb. 25, 1927, ch. 192, § 4, 44 Stat. 1235), related to jurisdiction of naturalization courts; present provisions are contained in section 701 (a) of this title.

SECTION 359, relating to racial limitation of naturalization, was from R. S. § 2169 (revised from act July 14, 1870, ch. 254, § 7, 16 Stat. 256), and acts Feb. 18, 1875, ch. 80, § 1, 18 Stat. 318; May 9, 1918, ch. 69, § 2, 40 Stat. 547. According to a communication of Jan. 8, 1943, the Immigration and Naturalization Service stated that it was the opinion of that office that said section 359 was superseded by section 703 of this title.

SECTION 360, relating to admission of persons not citizens owing permanent allegiance to the United States, was repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, 54 Stat. 1172. It was from act June 29, 1906, ch. 3592, § 30, 34 Stat. 606. Present provisions are contained in section 721 of this title.

SECTION 361, relating to period of residence required for citizenship, was repealed by act Mar. 2, 1929, ch. 536, 45 Stat. 1514. It was from R. S. § 2170, which was revised from act Mar. 3, 1813, ch. 42, § 12, 2 Stat. 811. Present provisions concerning period of residence are contained in section 707 of this title.

SECTION 362, forbidding naturalization of citizens within thirty days preceding a general election, was repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. It was from act June 29, 1906, ch. 3592, § 6, 34 Stat. 598. Present provisions are contained in section 734 (c) of this title.